

Court No. - 4

Case :- WRIT - C No. - 5556 of 2018

Petitioner :- Surendra Singh

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- A.K. Singh

Solanki, Pashali Solanki

Counsel for Respondent :- C.S.C., Ajay Kumar

Hon'ble Bala Krishna Narayana, J.

Hon'ble Irshad Ali, J.

Learned counsel for the petitioner is permitted to implead Consumer Grievance Redressal Forum, Meerut as respondent no. 4.

The petitioner has filed the present writ petition with the following prayer:

(i) to issue a writ, order or direction in the nature of certiorari calling for record of petitioner's case and to quash the impugned demand notice dated 21.11.2017 issued by the respondent no. 3 for recovery of Rs. 6,00,243/- from the petitioner (Annexure-10 to writ petition)

(ii) to issue a writ, order or direction in the nature of mandamus commanding the respondent no. 3 from proceeding with the recovery proceedings pursuant to the demand notice dated 21.11.2017 issued by the respondent no. 3 for recovery of Rs. 6,00,243/- from the petitioner till decision of the writ petition.

Learned counsel for the petitioner submitted that the impugned demand notice dated 21.11.2017 pertains to the final assessment made by the respondent no. 3 under Section 125 of the Electricity Act. He further submitted that the final assessment was made by the respondent no. 3 without serving copy of the provisional assessment on the petitioner and without affording any opportunity of hearing to the petitioner. The action taken by the respondents being de-hors the rules and regulations and the same cannot be sustained and is liable to be quashed.

Per contra, Sri Ajay Kumar, learned counsel appearing for the respondent no. 2 has submitted that submission made in the writ petition raises disputed questions of fact, which cannot be decided in writ proceedings and the petitioner has a remedy of approaching before the Consumer Grievance Redressal Forum, Meerut under Clause 7.10 of the Electricity Supply Code, 2005.

Having heard learned counsel for the parties and perused the record, we dispose of this writ petition with liberty to the petitioner to move a representation along with certified copy of this order before Consumer Grievance Redressal Forum, Meerut raising all the grounds taken by him in this writ petition within two weeks from today. In case such representation is made by the petitioner before the Consumer Grievance Redressal Forum, Meerut within two weeks from today, the same shall be decided by the Consumer Grievance Redressal Forum, Meerut within further period of four weeks after affording opportunity of hearing to all the parties concerned.

For a period of two months from today or till the representation filed by the petitioner is decided by the Consumer Grievance Redressal Forum, Meerut, recovery proceedings against the petitioner pursuant to the demand notice dated 21.11.2017 shall remain in abeyance.

Order Date :- 13.3.2018

A. Pt. Singh